



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 19, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21301
(SECOND REVISION)

EXPIRATION DATE: 2029-02-28

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: DGM Italia Srl
Vignate, Italy

US AGENT: Ferrari North America
Englewood Cliffs, NJ

2. PURPOSE AND LIMITATION:

a. This special permit authorizes the transportation in commerce of lithium ion batteries exceeding 35 kg aboard cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. This special permit serves as an approval under Special Provision A99 of the ICAO TI, as an approval under 49 CFR 173.185(b)(5), and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.

d. Note: this special permit does not waive or exempt an air operator's need to obtain a State of the Operator Approval in order to accept for transport aboard the aircraft, the special provision A99 authorized batteries listed herein.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.

Tracking Number: 2025054494

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that a lithium battery may not exceed 35 kg, except as specified herein.
5. BASIS: This special permit is based on the application of DGM Italia Srl dated November 5, 2024, submitted in accordance with § 107.123 and additional information submitted May 13, 2025.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

- (1) Each battery must weigh 12 kg or greater and have a strong, impact-resistant outer casing.
- (2) Each battery must be packaged in a UN specification 4D wooden box that meets the Packing Group II performance level. The 4D wooden box serves as a strong outer packaging.
- (3) Not more than one battery may be packaged in an outer packaging.
- (4) The net mass of a package may not exceed 76 kg (168 pounds).
- (5) Packaging must comply with the requirements in Packing Instruction 974 of the Supplement to the ICAO TI. Additionally, waste lithium batteries and lithium batteries being shipped for recycling or disposal are forbidden from air transport, and lithium ion batteries must not be packed in the same outer packaging with substances and articles of Class 1 (explosives) other than Division 1.4S, Division 2.1 (flammable gases), Class 3 (flammable liquids), Division 4.1 (flammable solids), or Division 5.1 (oxidizers).

b. OPERATIONAL CONTROLS:

- (1) The authorized lithium ion batteries identified as HVBF171 (Nominal 293 V and 7.45 kWh) are composed of SKP260B cells in a configuration of 80s1p as specified in the application dated October 17, 2021, on file with the Office of Hazardous Materials Safety.
- (2) All batteries must be protected against short-circuiting.
- (3) The state of charge of the battery may be not more than 30 % during air transport.
- (4) Each battery must be equipped with a battery management system verified to prevent overcharge, short-circuiting, and overdischarge.

c. TESTING REQUIREMENTS:

- (1) The battery must consist of cells that have passed all required tests in accordance with Section 38.3 of the UN Manual of Tests and Criteria, 6th Revised Edition.
- (2) The batteries must have passed all required tests in accordance with Section 38.3 of the UN Manual of Tests and Criteria, 7th Revised Edition.

d. MARKING REQUIREMENTS: Each package, and overpack if used, prepared under the provisions of this special permit must be plainly marked with the special permit number, "DOT-SP 21301".

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the ICAO TI.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, destination, and the State of Operator.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SH/Casey Chambers